

Supreme Court of Washington

Zackariah J. Bennett

Petitioner,

vs.

Melvina Catherine Manning

Respondent.

COA-DIV-1 Appeal No. 84450-4

**Motion and Declaration For Waiver of
Civil Fees and Surcharges
(MTWVF)**

I. Motion

- 1.1 I am the ☒ petitioner ☐ respondent in this action.
- 1.2 I am asking for a waiver of fees and surcharges under GR 34.

II. Basis for Motion

- 2.1 GR 34 allows the court to waive “fees or surcharges the payment of which is a condition precedent to a litigant’s ability to secure access to judicial relief” for a person who is indigent. As outlined below, I am indigent.

Dated: 04/15/2024 _____



Signature of Requesting Party

Zackariah J. Bennett

Print or Type Name

III. Declaration

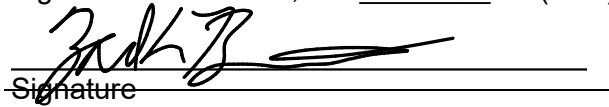
I declare that,

- 3.1 I cannot afford to meet my necessary household living expenses and pay the fees and surcharges imposed by the court. Please see the attached certificate, which I incorporate as part of this declaration.
- 3.2 In addition to the information in the financial statement, I would like the court to consider the following:
Attached benefit letter

[] (Check if applies.) I filed this motion by mail. I enclosed a self-addressed stamped envelope with the motion so that I can receive a copy of the order once it is signed.

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed in Goldendale, Wa _____ on (date) 04/15/2024 _____.


Signature

Zackariah J. Bennett
Print Name

CERTIFICATE

I, Zackariah Bennett, certify as follows:

1. That I have previously been found indigent for filing and searching records by King County Superior Court, and for filing with the Court of Appeals
2. That I filed several Motions for Order of Indigency with King County Superior Court, which also received a mandate after appeal to address it, to no effect.
3. That I am physically disabled due to medical issues.
4. That I am currently receiving state assistance.
5. That I do not anticipate my financial condition improving in the foreseeable future.

I, Zackariah Bennett, certify under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

04/15/2024

Date


Respondent

Goldendale, Wa



Date Printed: 04/15/2024

Client Name: BENNETT ZACKARIAH
ACES CLID: 3672426

The above client's benefit(s) within the last five months:

Cash Assistance (Assistance Unit #23990810)

Benefit Month	Issuance Method	Available Date	Amount Issued	Benefit Status
April, 2024		04/01/2024	\$706.00	Active
March, 2024		03/02/2024	\$706.00	Active
February, 2024		02/01/2024	\$706.00	Active
January, 2024		01/01/2024	\$706.00	Active
December, 2023		12/01/2023	\$654.00	Active

Food Assistance (Assistance Unit #9464276)

Benefit Month	Issuance Method	Available Date	Amount Issued	Benefit Status
April, 2024		04/07/2024	\$625.00	Active
March, 2024		03/07/2024	\$937.00	Active
February, 2024		02/07/2024	\$619.00	Active
January, 2024		01/07/2024	\$619.00	Active
December, 2023		12/08/2023	\$655.00	Active

FILED
6/2/2023
Court of Appeals
Division I
State of Washington

FILED
2023 JUN 09 09:15 AM
KING COUNTY
SUPERIOR COURT CLERK
E-FILED
CASE #: 22-2-09380-3 KNT

**IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION I**

MELVINA CATHERINE MANNING, | No. 849514-I

Respondent, | MANDATE

v. | King County

ZACKARIAH JEREMIAH | Superior Court No. 22-2-09380-3
BENNETT,

Appellant.

THE STATE OF WASHINGTON TO: The Superior Court of the State of Washington in and for King County.

This is to certify that the opinion of the Court of Appeals of the State of Washington, Division I, filed on April 17, 2023 became the decision terminating review in the above case on June 2, 2023. This case is mandated to the Superior Court from which the appeal was taken for further proceedings in accordance with the attached true copy of the decisions.

c: Zackariah J. Bennett
Melvina Catherine Manning
Hon. Matthew J Segal



IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed the seal of said Court at Seattle, this 2nd day of June, 2023.

A handwritten signature in black ink, appearing to read "Lea Ennis". The signature is fluid and cursive, with a large initial "L" and a long, sweeping tail.

LEA ENNIS

Court Administrator/Clerk of the Court of Appeals,
State of Washington, Division I.

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

MELVINA CATHERINE MANNING,

Respondent,

v.

ZACKARIAH JEREMIAH BENNETT,

Appellant.

No. 84951-4-I

DIVISION ONE

UNPUBLISHED OPINION

PER CURIAM — Zackariah Bennett moved under RAP 15.2 for an order of indigency with regard to a separate appeal, No. 84450-4-I. In that appeal, Bennett seeks review of a domestic violence protection order protecting Melvina Manning.

The trial court denied Bennett’s motion, stating only, “GROUND’S NOT MET UNDER RAP 15.2. MOTION DENIED.” Bennett appeals the order denying his motion, and we now reverse.

Under RAP 15.2(a), “[a] party seeking review in the Court of Appeals . . . partially or wholly at public expense must move in the trial court for an order of indigency.” Because Bennett is not seeking review in a type of case listed in RAP 15.2(b), his motion was governed by RAP 15.2(c). See RAP 15.2(b) (setting forth the procedure when the moving party seeks review in (1) certain criminal prosecutions, (2) dependency and termination cases, (3) commitment proceedings, (4) civil contempt cases directing incarceration of the contemnor,

(5) certain habeas cases, and (6) “any other case in which the party has a constitutional or statutory right to counsel at all stages of the proceeding”); see also RAP 15.2(c) (setting forth the procedure for “cases not governed by [RAP 15.2(b)]”).

Under RAP 15.2(c), “the trial court shall determine in written findings the indigency, if any, of the party seeking review.” If it determines the party is not indigent, then it must deny the motion and must also enter “findings designating the funds or sources of funds available to the party to pay all of the expenses of review.” RAP 15.2(c)(1). If, on the other hand, the trial court determines that the party seeking review is indigent, it must enter findings to that effect and then forward them to the Supreme Court. RAP 15.2(c)(2). The Supreme Court—not the trial court—will then determine whether the party seeking review is entitled to review partially or wholly at public expense. RAP 15.2(d); see also RAP 15.2(c) (party seeking review must demonstrate a constitutional or statutory right to review at public expense, “the right to which will . . . be determined *by the Supreme Court*” (emphasis added)).

Here, the trial court erred by not determining Bennett’s indigency or entering findings as required by RAP 15.2(c). And to the extent the trial court determined the ultimate issue of whether Bennett was entitled to review at public expense, it also erred by deciding an issue that RAP 15.2(c) expressly reserves for the Supreme Court.

We reverse and remand to the trial court for further proceedings consistent with this opinion.

FOR THE COURT:

Dwyer, J.

Cohen, J.

Andrus, J.P.T.